

		A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. CRC 3.1324(a). In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. CRC 3.1324(b). Defendants have substantially complied with the requirements of Rule 3.1324. As previously noted, they seek to amend their initial complaint by adding a new affirmative defense for sudden defense. Defendants recently substituted in new counsel who, in reviewing the declaration of defendant Abab, determined that the circumstances of the underlying traffic collision warranted the new defense. To the extent that plaintiffs contend that they will suffer prejudice by the new affirmative defense, defense counsel indicated in the reply that counsel would be willing to stipulate to a trial continuance if other counsel want one. Defense counsel also represented that defendant Abab would be produced for a second deposition concerning the circumstances of the underlying traffic collision if other counsel want one.
7	Ortiz v. City of Fullerton 2025-01457514 Motion for Leave to File Cross Complaint	The unopposed motion of defendants, cross-defendants, and cross-complainants Lansburg Family Trust, and Scott Lansburg for leave to file a first amended cross-complaint is GRANTED. Counsel for moving parties is to file the original first amended cross-cross-complaint and serve copies on all parties within five court days. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. Code Civ. Proc. § 473(a)(1). If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841. A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. CRC 3.1324(a).

		In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. CRC 3.1324(b). Moving parties have substantially complied with the requirements of Rule 3.1324 and none of the other parties to the action have opposed the motion.
8	Acevedo v. Veterans Educating Veterans, LLC 2024-01404288 Motion to be relieved as counsel for Veterans Educating Veterans, LLC and Robert Pinero	The motion of Lloyd Winter, P.C., to withdraw as attorneys of record for defendants Veterans Educating Veterans, LLC, and Robert Pinero is DENIED without prejudice for failure to use the mandatory Judicial Council forms and lodge a proposed order on the mandatory Judicial Council form. Rule 3.1362 of the California Rules of Court provides that notice of motion must be given to the client on Judicial Council form MC-051 and that it must be accompanied by the declaration of the moving attorney on Judicial Council form MC-052. It also provides that no memorandum of points and authorities is required to be filed or served with the motion. Rule 3.1362 further provides that a proposed order on Judicial Council form MC-053 must be lodged with the Court with the moving papers. Additionally, Rule 3.1362 contains directions regarding service of the motion.
9	LM v. Lewis 2025-01497824 Motion for Preference	The Motion for Trial Preference by plaintiff L.M., by and through his guardian ad litem, Michaela Miller, is GRANTED. Plaintiff moves for an order establishing entitlement to a preferential trial date within 120 days and setting such trial date. (Code Civ. Proc. § 36, subd. (a).) Because the Court has already set trial for 3/15/27, plaintiff is essentially asking the Court to vacate that date and set an earlier one. Defendant has not opposed the motion. Code of Civil Procedure section 36 provides in pertinent part: “(b) A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to